

The court finds that while counsel is experienced in this type of litigation, the suit did not involve any active litigation, was 100% remote, and used largely cookie-cutter pleadings (although they were some of the better ones the court has reviewed). Wage and hour class action cases are now considered fairly routine and common. Counsel's fee request for one-third of the gross settlement - \$250,000 - is excessive and would result in an overall hourly rate of \$1,250 which is not reasonable. The hourly rates claimed by class counsel are excessive by Solano County and Northern California standards. It is also unclear why so many experienced attorneys touched this file which results in a greater number of claimed hours than necessary. (Gomez Decl ¶ 18.)

An award of 25%, or \$187,500, is reasonable and results in a fee award with a lodestar that is more consistent with Solano County and Northern California rates and allows for a modest multiplier but ensures that the class members who have been injured are adequately compensated.

Plaintiff to prepare the order after hearing and Judgment and defense shall approve as to form pursuant to California Rules of Court, rule 3.1312.

This matter is calendared for dismissal hearing on March 4, 2027 at 8:30. Counsel and settlement administrator shall file a declaration fifteen calendar days prior to confirm that all funds have been distributed and the unclaimed funds have been deposited with the State.

NO NAME GIVEN MOHIT v. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-07798

Plaintiff's Motion to Compel Further Responses to Requests for Production and Special Interrogatories

TENTATIVE RULING

Plaintiff NO NAME GIVEN MOHIT moves to compel Defendant AMERICAN HONDA MOTOR CO., INC. to further respond to sixteen of his requests for production, set one and eleven of his special interrogatories, set one. Plaintiff alleges breaches of express and implied warranties under the Song-Beverly Consumer Warranty Act in relation to his purchase of a 2025 Honda Accord hybrid car (the "Vehicle") manufactured and warranted by Defendant.

Notice of Tentative Ruling. Plaintiff's notices of motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Plaintiff is cautioned to observe local rules going forward.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue

presented by the motion” to compel. Plaintiff’s counsel’s declarations accompanying the motions states that Plaintiff’s counsel served the discovery requests at issue on October 27, 2025 and received Defendant’s substantive responses on January 5, 2026. (Declaration of Kristina Amidi in Support of Motion to Compel Further Responses to Special Interrogatories (“Amidi Dec.”) at ¶¶ 3-5, Exhibits A-C.) Plaintiff’s counsel met and conferred with defense counsel by phone on February 11, 2026 but could not reach a resolution of all issues. (*Id.* at ¶¶ 6-7, Exhibit D.)

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge’s gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

The court finds Plaintiff’s meet and confer efforts adequate.

Requests for Production. Request #45. Plaintiff seeks all complaints by owners of 2025 Honda Accord hybrids that are “the same or substantially similar to any of the complaints that the SUBJECT VEHICLE was presented to YOUR authorized repair facilities for repair during the warranty period.” This request is vague, especially given the contents of the cookie cutter complaint. Plaintiff’s complaint does not identify their own “complaints” with specificity. This should have been resolved through meet and confer. Plaintiff shall revise its request to identify the specific categories of documents requested that match the “complaints” that Plaintiff contends it has about its car in the next 10 calendar days and serve by email. Defendant shall produce responsive documents per the Code of Civil Procedure.

Requests #56-69. All of these requests seek information pertaining to Defendant’s efforts to preserve information material to this litigation, how Defendant searches its databases for material information, the maintenance and backing up of its databases, and the like. This “discovery on discovery” is not reasonably calculated to lead to admissible evidence. It has no bearing on the issues of this Song-Beverly action. Plaintiff’s authority is not on point. In *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243 the appellate court found that a trial court did not abuse its discretion in ordering a defendant county to respond to a special interrogatory asking it to give information about its record retention policies. Here Defendant’s record retention policies are not relevant to the issues framed in the operative pleading. Defendant **need not** further respond.

Special Interrogatories. All of Plaintiff’s special interrogatories at issue pertain to Defendant’s recordkeeping practices. For the same reasons as with the requests for production of documents pertaining to Defendant’s recordkeeping practices Defendant **need not** further respond.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2031.310, subdivision (h) [inspection demands], require sanctions against a party

that unsuccessfully makes or opposes a motion to compel further responses to discovery requests, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds that the circumstances weigh against the imposition of sanctions.

ROSENBERG, et al. v. ARKSHIRE FINANCIAL, LLC, et al.
Case No. CU26-00107

Motion to Compel Arbitration and Stay Proceedings

TENTATIVE RULING

A dispute exists as to whether Plaintiffs executed an ICA that included an arbitration provision. Plaintiffs contend they did not, but that they signed a 2016 ICA that did not have the arbitration clause. Yet Plaintiffs attach an unsigned “2023” ICA with Arkshire to the complaint that forms the basis of the action that includes arbitration terms which they contend they “accepted” while arguing the contract is missing material terms. (Exh. B, ¶ 25, p 11.) Defendant ARKSHIRE presents evidence of an electronic “signature” on a 2024 ICA that was executed at a conference by each Plaintiff.

As contemplated by statute, the parties stipulated to stay discovery pending resolution of the motion to compel. It appears to the court that additional discovery is appropriate to resolve the limited issue as to what contracts exist between the parties and whether Plaintiffs executed the 2024 version of the ICA that contains the arbitration terms while attending the conference or is there yet another 2023 version floating around?

This limited discovery does not constitute a waiver of the right to compel arbitration. (See e.g. *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413; *Bouton v. USAA Casualty Ins. Co.* (2008) 167 Cal.App.4th 412, 427; *Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 884; *Brown v. Wells Fargo Bank, NA* (2008) 168 Cal.App.4th 938, 951.)

This matter is continued to permit the parties to engage in depositions of Plaintiffs and Defendant’s PMK(s) as to the formation of contract(s) and arbitration agreement(s), if any, to be completed during the next 45 days.

Defendant may supplement its moving papers in a further pleading not to exceed 7 pages to be filed and served in 60 days. Plaintiff may file and serve a supplemental opposition not to exceed 7 pages in 75 days and Defendant may file and serve a supplemental reply in 90 days not to exceed 3 pages. Hearing on the petition to compel arbitration is continued to October 20, 2026 at 8:30.
